Deepak Kumar Malhotra vs State Govt.Of Nct Of Delhi on 5 January, 2023

Author: Yogesh Khanna

Bench: Yogesh Khanna

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* IN THE HIGH COURT OF DELHI AT NEW DELHI
\+ BAIL APPLN. 2448/2022
DEEPAK KUMAR MALHOTRA

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Through: Mr.Ramesh Gupta, Senior A
with Mr.Vikram Aggarwal,
P.Tushir, Mr.Shailendra
Advocates.

versus

STATE GOVT.OF NCT OF DELHI

Through: Mr.Aman Usma
with Insp.Su
Ms.Ekta Chou
Dutt Dwivedi

CORAM:
HON'BLE MR. JUSTICE YOGESH KHANNA
ORDER

% 05.01.2023
1. The facts of the case are:
a. the FIR No. 94/2018 under

468/471/120B IPC at PS EOW, New Delhi was registered on the complaint of Sh. V.K. Chauhan, Chief Manager, Central Bank of India, Anand Parbat, Delhi wherein it was inter-alia alleged that Deepak Malhotra (the present applicant) and Indu Bala (mother of the applicant) approached the Anand Parbat Branch of Central Bank of India on behalf of M/s.Radhika International for sanctioning a loan of Rs. 225 lacs and the same was sanctioned as Cash Credit of Rs.225 Lacs against security of property No. 14/A/89, West Karol Bagh, Delhi on 22.2.2012. Subsequently, Deepak Malhotra with Ruchi Malhotra (wife of the present applicant) and Indu Bala again approached the same branch for sanctioning a loan of Rs.43.00 Lacs under Cent Mortgage Scheme and same was sanctioned on 27.4.2012 and mortgage was also created by Indu Bala over immovable property No. 14/A/89, West Karol Bagh, Delhi. Later on, during internal investigation done by the bank regarding both the accounts, it was revealed that balance sheets submitted by the applicants were fake and no business activity was found on inspection of said unit and even the title in favor of Indu Bala was not correct regarding property No.14/A/89, West Karol Bagh, Delhi and the Bank declared the account as fraud on 27.10.2016 to the tune of Rs.283.03 lacs. b. During the course of

the investigation, documents from the complainant bank were obtained and perused. It was found that the property WEA 14A/89, Karol Bagh, New Delhi, which was kept as lien/security with the bank while obtaining the loan, was already sold to other person and the necessary details were collected and were found as under:

> i) Smt. Indu Bala W/o Sh. Paras Ram sold the second floor with roof rights of the property to Smt. Mohini Duggal W/o Sh.

Sudarshan Duggal vide Regd. sale deed no. 6590, Book No. 1, Vol no. 12112 pages 28 to 36 dated 25 .09.06 (civil suit pending in Tis Hazari Court)

ii) Smt. Indu Bala again sold the second floor with roof rights of second floor of the said property to Sh. Chander Prakash S/o Sh. Bhagwan Das vide Regd. Sale deed no. 8162, Book No.1 , Vol no. 12182 pages 20 to 29 dated 22.12.06 (civil suit pending in Tis Hazari Court)

iii) Smt. Indu Bala sold first floor without roof rights of the said property to Dinesh Singh S/o Sh. Gurdyal Singh vide Regd. Sale deed no. III, Book No.1, Vol no. 12192 pages 56 to 60 dated 08.01.2007.

iv) Smt. Indu Bala sold ground floor without roof rights of the said property to Sh. Gunneet Singh S/o Sh. Pritam Singh vide Regd. Sale deed no. 878, Book No.1, Vol no. 12226 pages 182 to 189 dated 20.02.2007.

v) Further, Smt. Indu Bala transferred the ground floor without roof rights of the said property to her son namely Deepak Malhotra and executed gift deed vide regd. no. 6689, Book No.1, Vol no. 13741 pages 105 to 112 dated 14.07.10 c. During the course of the investigation, DVAT report and Balance sheet submitted with bank by the alleged person/persons were got verified and it revealed that the DVAT report received from government authority do not match with the record submitted with bank.

d. For verification of balance sheets, office addresses given in the report were visited and same could not be verified being the false address of CAs.

e. Bank account statement submitted before the complainant bank regarding Account No. CA/01/100046, Corporation Bank (From 01.04.2011 to 17.01.2012) were got verified from concerned bank and the same were found fake.

f. During investigation, it was also found Deepak Kumar Malhotra had also obtained loan from Karnataka Bank and a Case FIR No. 166/18, Dated 16.08.2018, under Sections 420/467/468/471/120B IPC, P.S. EOW, New Delhi was registered on the complaint of Sh. Mahesh P Malunjkar, Associate Vice President, Phoenix ARC Private Limited, 5th Floor, Dani Corporate Park, 158 CST Road, Kalina, Santacruz (E), Mumbai-400098 wherein it was inter-alia alleged Kamataka Bank (Assignor Bank) had sanctioned credit facility of an amount of Rs.200 lakhs to the M/s. Gauri Shankar Jewelers (Proprietorship of the Applicant) in 2014. Accused Deepak Kumar had executed

various loans and security documents to secure repayments and Indu Bala Malhotra (mother of the present applicant) created mortgage by submitting original title deed of their residential property WEA 14A/89, Karol Bagh, New Delhi to the Assignor Karnataka Bank. In Karnataka bank, the accused persons had also produced the same chain of documents before the said bank also. g. Accused/applicant Deepak Malhotra has siphoned the loan amount by withdrawing the money through cash or in the account of his own fund i.e., Ruchi Jewelers and Gauri Shankar Jewelers. The present applicant is a habitual offender and involved in many cases of cheating. He had misappropriated the public money. Accused Deepak Malhotra was arrested on 29.12.2020 and is running in Judicial Custody. Charge Sheet in the present case has been filed on 25.03.2021.

h. In the present case, CC Limit and loan under the Cent Mortgage Scheme were obtained by pledging of property no 14A/29, WEA, Karol Bagh, New Delhi which was already sold to other persons. One part of property was also transferred in the name of Deepak Malhotra, the present applicant/accused. As per the bank, no other property was pledged with bank other than 14A/29, WEA Karol Bagh, New Delhi. Bail application of accused Deepak Malhotra was dismissed by the Ld. CMMlCentral and ASJ/Central, Tis Hazari Courts, New Delhi before filing the Charge-sheet. After filing the Charge Sheet, he moved bail application before the Hon'ble Delhi High Court and same was dismissed vide order dated 27.10.2021. After that he applied for interim bail before this vide Crl. M. C. 232/2022, on the ground of medical reason for his family and same was also dismissed by this Court on 31.03.2022. He had also applied for interim bail afresh before this Court vide Crl.M.C.2166/2022. He also filed bail application before learned CMM Central and ASJ/Central, Tis Hazari Courts, New Delhi which were dismissed on merit. i. Supplementary investigation of the case is in progress. During the course of further investigation, alleged documents were sent to National Security Press, Nasik where expert reported alleged stamp papers are tempered and signatures are erased. In view of the expert opinion documents which were produced before bank were forged and fabricated.

2. It is alleged the petitioner is involved in 08 FIRs and out of them, one FIR No.161/2011 under Section 420/468/471 IPC registered at police station Rajinder Nagar has since been quashed; in other 05 FIRs the petitioner is on bail and it is only two FIRs, including present one, the petitioner is running in custody. The details of the FIRs against him, per status report is as under:

3. It is stated by the learned APP for the State the report of India Security Press, Nasik has been received and a supplementary chargesheet has since been filed. Admittedly the investigation qua petitioner is complete in the present matter.

4. No doubt, there are serious allegations against the present petitioner but admittedly he has entered into one time settlement with the bank on 15.11.2020 for a sum of Rs.1.80 crores and he has paid an amount of Rs.18.00 lacs but was unable to pay the balance amount since was taken in custody on 29.12.2020. He is in custody since last two years and it is submitted by the learned counsel for the complainant once the petitioner is out on bail, he would make endure to settle with Bank.

5. The learned senior counsel for the petitioner submits the petitioner is in custody for the last two years and investigation qua him stand complete and there are 36 witnesses to be examined by the prosecution and certainly it would take considerable time, hence the petitioner cannot be incarcerated for such long period. Admittedly he is on bail in other FIRs.

6. In view of the above, the petitioner herein is admitted to bail on his executing a personal bond of Rs.1.00 lac with one surety of like amount to the satisfaction of the learned Trial Court. He shall furnish his contact details/address to the SHO concerned and shall keep his mobile location app open at all time and shall not leave the country without prior permission of the learned Trial Court.

7. With these observations the petition stands disposed of along with pending application(s), if any.

8. A copy of this order be communicated to the learned Trial Court/Jail Superintendent for information and compliance.

9. Order dasti.

YOGESH KHANNA, J.

JANUARY 05, 2023 DU